

MASTER SOFTWARE SERVICE LEVEL AGREEMENT (SLA)

This Service Level Agreement ('SLA') is entered into between **Apex Cloud Technologies Inc.** ('Vendor') and **Vertex Financial Services Corp.** ('Client'), effective as of January 15, 2024.

Section 1: Service Availability Commitment

- 1.1 Monthly Uptime Percentage:** Vendor guarantees that the Core API and Vector Query Services will maintain a Monthly Uptime Percentage of at least **99.9%** during each calendar month of the Term.
- 1.2 Scheduled Maintenance Exclusions:** Service availability calculations strictly exclude scheduled maintenance windows. Scheduled maintenance shall occur only between 01:00 UTC and 04:00 UTC on Sundays, and Vendor must provide at least 72 hours advance written notification.

Section 2: Service Credits & Compensation

2.1 In the event Vendor fails to satisfy the 99.9% uptime commitment, Client is eligible to receive Service Credits according to the following schedule:

Monthly Uptime Percentage	Service Credit Percentage of Monthly Fee
99.0% - 99.89%	10% Credit
95.0% - 98.99%	25% Credit
Below 95.0%	50% Credit

Section 3: Incident Response Times and Severity Levels

3.1 **Severity 1 (Critical):** Complete service outage affecting all end-users. Initial response time: **within 15 minutes**. Workaround or resolution required within 4 continuous hours (24x7x365).

3.2 **Severity 2 (Major):** Degraded performance where critical features are impaired but workaround exists. Initial response time: **within 1 hour**. Resolution target within 12 business hours.

3.3 **Severity 3 (Minor):** Non-critical bug or administrative request. Initial response time: **within 24 business hours**.

Section 4: Data Protection, Backups, and Liability Cap

4.1 **Disaster Recovery:** Vendor shall maintain continuous multi-region transaction replication with a Recovery Point Objective (RPO) of ≤ 5 minutes and a Recovery Time Objective (RTO) of ≤ 30 minutes.

4.2 **Limitation of Liability:** Except for indemnification obligations and breaches of confidentiality under Section 6, each party's maximum aggregate monetary liability arising under this Agreement shall not exceed the total fees paid by Client in the preceding twelve (12) months.